



CHAPTER ix.

An Act to confirm certain Provisional Orders of the Local Government Board for Ireland relating to the King's County and the Rural District of Newry No. 1. A.D. 1917.

[10th July 1917.]

WHEREAS the Local Government Board for Ireland (hereinafter referred to as "the Local Government Board") have made the Provisional Orders set out in the schedule hereto under the Public Health (Ireland) Acts 1878 to 1907:

And whereas it is requisite that the said Orders should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled, and by the authority of the same as follows:—

1. The Orders set out in the schedule hereto are hereby confirmed and all the provisions thereof shall have full validity and force. Orders in
schedule
confirmed.

2. This Act may be cited as the Local Government Board (Ireland) Provisional Orders Confirmation Act 1917. Short title.

[Ch. ix.] *Local Government Board (Ireland) [7 & 8 GEO. 5.]
Provisional Orders Confirmation Act, 1917.*

A.D. 1917.

SCHEDULE.

KING'S COUNTY.

*King's
County.*

*Provisional Order for altering the Local Government Board
(Ireland) Provisional Orders Confirmation (No. 5) Act 1910
and the Local Government Board (Ireland) Provisional
Orders Confirmation (No. 2) Act 1911.*

61 & 62 Vict.
c. 37.

WHEREAS by the Orders specified in the schedule to this Order (being Provisional Orders made by the Local Government Board for Ireland under section 20 of the Local Government (Ireland) Act 1898 and confirmed respectively by the Acts specified in the said schedule) the business of the trustees or drainage boards for the several drainage districts mentioned in the Orders respectively was transferred to the county council of the King's County:

And whereas it appears to the Local Government Board for Ireland (hereinafter referred to as the Local Government Board) to be desirable that the confirming Acts so far as they relate to the said Orders or any of them should be altered in manner hereinafter appearing:

Now therefore We the Local Government Board in pursuance of the powers given to Us by section 214. of the Public Health (Ireland) Act 1878 and any enactment extending the same and of all other powers enabling Us in that behalf do hereby order that from and after the date of the Act confirming this Order the following provisions shall have effect namely:—

1. Each of the Acts specified in the schedule to this Order shall be altered so as to have effect as if the following article were inserted in each Order specified in the said schedule and confirmed by the Act that is to say—

“ I. a. Notwithstanding anything to the contrary in subdivision (4) of Article 36 of the schedule to the Local Government (Application of Enactments) Order 1898 a committee appointed by the county council for the transaction of any business transferred by this Order may consist partly of members of the council and partly of persons who are not members of the council so that the number of such persons does not exceed one-third of the total number of members of the committee ”

and each such Order shall accordingly be read and construed as if it contained that article.

[7 & 8 GEO. 5.] *Local Government Board (Ireland)* [Ch. ix.]
Provisional Orders Confirmation Act, 1917.

2. The costs and expenses of the Local Government Board in respect of the application for preparation making and confirmation of this Order shall be paid by the county council and may be raised equally over the whole county. A.D. 1917.
King's County.

3. This Order may be cited as the King's County (Drainage) Order 1917.

Given under Our Seal of Office this Fourth day of April in the year of our Lord One thousand nine hundred and seventeen.
 (I.S.) (Signed) H. A. ROBINSON.

SCHEDULE.

Orders.	Confirming Acts.
Boolinarrig Drainage Order 1910	The Local Government Board (Ireland) Provisional Orders Confirmation (No. 5) Act 1910. 10 Edw. 7 & 1 Geo. 5 c. lxvi.
Castlebernard Drainage Order 1910	Do.
Derrinlough Drainage Order 1910	Do.
Frankford River Drainage Order 1910	Do.
Derryholmes Drainage Order 1910	The Local Government Board (Ireland) Provisional Orders Confirmation (No. 2) Act 1911. 1 & 2 Geo. 5 c. cxxxii.

RURAL DISTRICT OF NEWRY No. 1.

Provisional Order to enable the Council of the Rural District of Newry No. 1 to put in force the Compulsory Clauses of the Lands Clauses Acts. Newry No. 1.

WHEREAS the council of the rural district of Newry No. 1 (in this Order referred to as "the district council") require to purchase and take the lands described in the schedule hereto for the purpose of improving the sewerage of the town of Rathfriland and its neighbourhood in their district:

Now therefore We the Local Government Board for Ireland in pursuance of the powers given to Us by section 203 of the Public Health (Ireland) Act 1878 and of all other powers enabling Us in that behalf do hereby order that from and after the date of the Act confirming this Order the following provisions shall have effect namely:— 41 & 42 Vict. c. 52.

1. The district council shall be empowered to put in force with reference to the lands described in the schedule hereto and for the

[Ch. ix.] *Local Government Board (Ireland) [7 & 8 GEO. 5.]
Provisional Orders Confirmation Act, 1917.*

A.D. 1917. purpose aforesaid the powers of the Lands Clauses Acts as amended
Newry No. 1. by section 8 of the Public Health (Ireland) Act 1896 with respect to
59 & 60 Vict. the purchase and taking of lands otherwise than by agreement or
c. 54. any of them.

2. The costs and expenses of the district council and the Local
Government Board for Ireland incurred in respect of the application
for preparation making and confirmation of this Order shall be paid
by the district council and the money required for that purpose shall
be supplied by the county council of Down in the manner provided
61 & 62 Vict. by the Local Government (Ireland) Act 1898 as part of the expenses
c. 37. of the district council.

3. This Order may be cited as the Rathfriland Sewerage Order
1917.

SCHEDULE.

COUNTY OF DOWN.

NEWRY NO. 1 RURAL DISTRICT.

Townland of KILTARRIFF Parish of DRUMGATH.

No. on deposited Plan.	Description of Lands.	Owners or reputed Owners.	Occupiers.
1	Land containing 1r. 6p.	Captain J. Percy Meade -	Representatives of J. Hutchinson.
2	Land containing 1a. 0r 9p.	Same - - -	Representatives of Eliza Cromie.

Given under Our Seal of Office this Ninth day of February in the
year of our Lord One thousand nine hundred and seventeen.

(I.S.)

(Signed) H. A. ROBINSON.

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